APPENDIX
UNPUBLISHED
UNITED STATES COURT OF APPEALS
FOR THE FOURTH CIRCUIT
IN THE CIRCUIT COURT FOR PRINCE GEORGE'S
COUNTY
LORD'S LANDING VILLAGE CONDOMINIUMS,

Plaintiff,

vs. CIVIL ACTION LAW
NO: 92-23723

WELLINGTON HOMES,

Defendant,

_____/

OFFICIAL TRANSCRIPT OF PROCEEDINGS
(Excerpt from Trial on the Merits)
VOLUME II OF II

Upper Marlboro, Maryland
Wednesday, May 25, 1994

BEFORE:

HONORABLE ARTHUR M. AHALT, Judge

APPEARANCES:

For the Plaintiff:
KEVIN THORNTON, ESQUIRE

For the Defendant:
KENNETH STALLARD, ESQUIRE
JOHN JUDE O'DONNELL, ESQUIRE

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If the plaintiff has established that the defendant engaged any deceptive trade practices as I have defined them, by a preponderance of the evidence, then you should find for the plaintiff. If the plaintiff fails to establish that by a preponderance of the evidence, then you should find for the defendant.

The fifth issue for you to determine is another Consumer Protection Act requirement concerning the issue of "whether or not the developer made any misrepresentations, omission statements, that would lead the plaintiffs to believe that the common elements of the condominium had a quality useful life or characteristics which they do not, in fact, have."

In order for the plaintiff to meet that requirement of the statute, it has to show, by a preponderance of the evidence, that the defendant made a representation that "consumer goods, consumer realty or consumer services have a sponsorship approval, accessory characteristic, (unintelligible) use, benefit or quantity, which they do not have. A merchant has a sponsorship, approval status, affiliation, or connection which he does not have deteriorated, altered, reconditioned, reclaimed or second-hand consumer goods are original or new, or consumer goods consumer realty, consumer services are of a particular standard quality, grade, style or model which they are not, for consumer protection purposes, the meaning of any statement or representation is determined not only by what is explicitly stated, but also by what is reasonably applied.

"This section of the act does not require the seller to have knowledge of the falsity or intent to deceive. This section only requires a false deceptive statement that has the capacity to mislead the consumer."

So the plaintiff has to show by a preponderance of the evidence that Wellington Homes made representations, misrepresentations, omissions, or statements that would lead the plaintiffs to believe that the common elements at the condominium had a quality useful life or characteristics which they do not have.

The sixth issue which you have to determine is whether or not the plaintiff's have shown that the defendant's concealed any of the conditions at Lords Landing from the plaintiffs.

"The Maryland Consumer Protection Act prohibits a failure to state a material fact if the failure deceives or tends to deceive. An omission is considered material if a significant number of unsophisticated consumers would attach importance to the information in determining a choice of action. This section of the Act does not require the seller to have knowledge of the falsity or intent to deceive. This section requires only a false or deceptive statement that has the capacity to mislead the consumer."

The seventh issue that you must determine concerns an issue of a fraudulent misrepresentation by the defendant with regard to the conditions of the common elements.

"The Consumer Protection Act prohibits any deception, fraud, pretense, false premise, misrepresentation, or knowing concealment, suppression, or omission of any material fact with the intent that a consumer rely on the same in connection with the promotion or sale of consumer goods,

consumer realty, or consumer service, or a contract or other agreement for the evaluation, perfection, marketing, brokering, or promotion of an invention, or the subsequent performance of a merchant with respect to an agreement of sale, lease or rental. An omission is considered material if a significant number of unsophisticated consumers of goods or services would attach importance to the information in deciding on a course of action."

If the plaintiff proves, by a preponderance of the evidence, that there was a fraudulent misrepresentation, as I've just defined it, by the defendant, you should find for the plaintiff. If the plaintiff does not prove that by a preponderance of the evidence, you should find for the defendant.

If you find for the defendant on all of these issues, that ends your verdict. You will then have concluded that the plaintiff has not established, by a preponderance of the evidence, that under any of the theories of the cause of action, the plaintiff has established by a preponderance of the evidence, that the defendant is responsible for any of these conditions that may have existed at Lord's Landing.

On the other hand, if you find for the plaintiff for any one of those issues, then you should go on and determine a fair amount of money that will compensate the plaintiff for any loss that they have sustained as damages. And so there will be on your verdict sheet a question, "In what amount do you assess damages?"

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IN THE CIRCUIT COURT FOR
PRINCE GEORGE'S COUNTY, MARYLAND

LORDS LANDING VILLAGE	:	
	:	
Plaintiff	:	
	:	
vs.	:	CAL NO. 92-23723
	:	
WELLINGTON HOMES, ET AL.	:	
	:	
Defendants	:	

VERDICT SHEET

1. Issue One involves implied warranties from Wellington Homes to the Council of Unit Owners at Lords Landing Village Condominium. Do you find that Defendant Wellington Homes breached this warranty obligation?

   For Plaintiff ___√___

   For Defendant

2. Issue Two involves implied warranties from Wellington Homes to each purchaser at Lords Landing Village Condominium. Do you find that Defendant Wellington Homes breached its warranty obligation to the individual purchasers at Lord Landing for common elements?

   For Plaintiff ___√___

   For Defendant

3. Issue Three involves express warranties to each purchaser at Lords Landing Village Condominium. Do you find that Defendant Wellington Homes breached its express warranties to the individual purchasers at Lords Landing for common elements?

For Plaintiff √

For Defendant

4. Issue Four is for violations of the Consumer Protection Act and it involves false or misleading statements. Do you find that Defendant Wellington Homes has violated the Consumer Protection Act under this Issue?

For Plaintiff

For Defendant √

5. Issue Five is for violations of the Consumer Protection Act and it involves misrepresentations, omissions or statements by Defendant Wellington Homes that would lead Plaintiffs to believe that the common elements of the condominium had a quality, useful life or characteristics which they do not have. Do you find that Defendant Wellington Homes has violated the Consumer Protection Act under this issue?

For Plaintiff √

For Defendant

6. Issue Six is for violations of the Consumer Protection Act and it involves concealment of the conditions at Lords Landing from the Plaintiffs. Do you find that Defendant Wellington Homes violated the Consumer Protection Act under this issue?

For Plaintiff

For Defendant ✓

7. Issue Seven is for violation of the Consumer Protection Act and it involves fraudulent misrepresentations by the developer with regard to conditions of the common elements. Do you find that Defendant Wellington Homes violated the Consumer Protection Act under this issue?

For Plaintiff

For Defendant ✓

If you find in favor of the Defendant on all issues, that ends your verdict.

If you find in favor of the Plaintiff on any one issue, then in what amount do you assess damages?

Amount $1.1 mil